

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 06/03/2026

Case #	Case Name	Tentative
01490361	Holland – Trust	TENTATIVE RULING Case: Holland – Trust 01490361 Calendar No.: 1 Date: 06/03/26 MOTION TO DISMISS (ROA 24) Respondent Dale Schmaltz, trustee of the Mary Jo Holland Trust, ("Respondent") moves for an order dismissing "the petition" filed by Petitioner Jacqueline Radell ("Petitioner"). Petitioner filed an initial "Petition to Compel Accounting, Remove Trustee, and Set Aside Fraudulent Transfer of Property from Trust" on 6/17/25. (ROA 2.) Petitioner filed an Amended Petition on 7/7/25, seeking essentially the same relief. (ROA 18.) Since an amended petition supersedes an initial petition, the court presumes that Respondent is moving to dismiss the Amended Petition, though the moving papers only vaguely refer to "the petition." Respondent's motion to dismiss is what has been referred to as a "nonstatutory speaking motion," i.e., a motion to dismiss an action based on extrinsic evidence. Such motions have been superseded by statute. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5 ["The procedure of moving to dismiss an action based on extrinsic evidence is disapproved in California and the motion is permitted only

		where it complies with the requirements for a motion for summary judgment”]; <i>Union School Dist. v. Rafferty</i> (1964) 226 Cal.App.2d 599, 603 [“speaking motion” to dismiss action as sham “has been superseded by the enactment of Code of Civil Procedure, section 437c, and must be treated as a motion for summary judgment”].) Respondent’s motion to dismiss does not comply with procedural requirements of a motion for summary judgment. The court may treat a nonstatutory motion to dismiss as a nonstatutory motion for judgment on the pleadings. (<i>Saltarelli & Steponovich v. Douglas</i> (1995) 40 Cal.App.4th 1, 5.) A motion for judgment on the pleadings functions as a general demurrer for failure to state facts sufficient to constitute a cause of action, and the rules governing demurrers apply. (Code of Civ. Proc. § 438(c)(1)(B)(ii); <i>Smiley v. Citibank</i> (1995) 11 Cal.4th 138, 146; <i>Cloud v. Northrop Grumman Corp.</i> (1998) 67 Cal.App.4th 995, 999); <i>Templo v. State of Calif.</i> (2018) 24 Cal.App.5th 730, 735 [“motion for judgment on the pleadings is equivalent to a demurrer”].) Demurrers and motions for judgment on the pleadings can be used only to challenge defects that appear within the “four corners” of the pleading – which includes the pleading, any exhibits attached, and matters of which the court is permitted to take judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal. 3d 311, 318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.) Respondent has not requested that the court take judicial notice of any matter. On its own motion, the court takes judicial notice of the judgment (ROA 107) in the Unlawful Detainer action (OCSC Case no. 30-2024-01415172) in which Respondent had Petitioner evicted from trust real property. The judgment in the Unlawful Detainer action only establishes that the trustee owns the subject property, that the trustee gave Petitioner notice to quit, and that Petitioner failed to vacate the subject property. In short, the judgment in the Unlawful Detainer action resolves the narrow issue of the right to possession of the subject property. It does not resolve Petitioner’s claim in her Amended Petition in this action that the Trustee engaged in self-dealing by improperly transferring the subject property to himself. Thus, there are no grounds to grant judgment on the grounds of res judicata or collateral estoppel. Respondent’s argument that the petition is moot relies on extrinsic evidence and is, therefore, not subject to judgment on the pleadings.
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		Likewise, Respondent's argument that the petition fails to state a cause of action is based on extrinsic evidence. In ruling on a motion for judgment on the pleadings, all material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (Code Civ. Proc. § 425.10(a)(1); <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413; <i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 549-50.) Respondent's arguments go the merits of the claims pled in Amended Petition, not to the sufficiency of the pleading. Based on the foregoing, the "motion to dismiss" is denied as procedurally defective; the court exercises its discretion to treat the motion as a motion for judgment on the pleadings and denies such motion. This ruling is without prejudice to Respondent's right to seek the relief requested in a procedurally proper manner. Counsel for Respondent is ordered to give notice.
01378180	Street - Trust	TENTATIVE RULING Case: Street - Trust 01378180 Calendar No.: 2 Date: 06/03/26 MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION (ROA 195) Petitioners Chelsea Vanderpool and Courtney Vanderpool (collectively, "Petitioners") move for summary judgment or, in the alternative, summary adjudication as to the claim in their Amended Petition (ROA 62) that the Lemon Street Irrevocable Trust (the "Trust") should be modified. The motion is opposed by the settlor and former trustee of the Trust, Richard Vanderpool, and the current trustee of the Trust, Randall Beckman. (ROAs 170 and 173.) Petitioners' request for judicial notice (ROA 109) is granted as to Exhibits A and B.

		In 2014, Petitioners sued Mr. Vanderpool concerning the estate of Mr. Vanderpool's mother. On or about 4/22/16, the parties reached a settlement which was reduced to a one-page, handwritten Stipulation and Order. The Stipulation and Order reads in full as follows: "Respondent shall create an irrevocable trust of which Petitioners shall be the sole beneficiaries. He shall transfer the Lemon Street apartment houses to that trust. Net income of the trust shall be paid to the beneficiaries in equal shares not less frequently than quarterly. The principal shall be distributed to the beneficiaries thereof or one survivor of them upon her attainment of the age of 35 years by the youngest surviving beneficiary. In the event that Respondent dies prior to distribution the beneficiaries may designate a professional fiduciary as successor Trustee. [¶] The court retains jurisdiction to enforce the settlement under §664.6, C.C.P." (ROA 109, RJN, Exhibit A.) On or about 9/16/16, Mr. Vanderpool created the Trust contemplated by the Stipulation and Order and signed it as both settlor and trustee. The Trust consists of Seven Articles and multiple sections, and it includes the terms agreed upon in the Stipulation and Order. (Id. at Ex. B.) On 5/29/25, Petitioners filed a "First Amended Petition for Breach of Fiduciary Duty by Former Trustee; Petition to Modify Terms of Trust" ("FAP"). (ROA 62.) Petitioners' motion concerns only the latter Petition to Modify Terms of Trust. The FAP alleges that the Trust contains provisions not agreed to in the Stipulation and Order and specifically seeks to modify the Trust by deleting sections 4.5, 5.1, 5.9, 5.16, and 5.20. The FAP states in the caption that it is made pursuant to Probate Code section 17200. It does not specify whether it is made under subdivision (b)(3) to have the court determine the validity of the Trust provisions, or under subdivision (b)(13) to have the court modify the Trust. The FAP clearly requests that the Trust be modified. However, the requested modification is to have the specified provisions stricken because they are not part of the Stipulation and Order, which indicates an argument as to the validity of such provisions. Petitioners' Separate Statement establishes only that sections 4.5, 5.1, 5.9, 5.16, and 5.20 were not terms agreed to in the Stipulation and Order, which fact is undisputed. However, there is nothing on the face of the Stipulation and Order to indicate that the mandatory
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provisions were to be exclusive. The Stipulation and Order required Mr. Vanderpool to “create an irrevocable trust.” Such broad provision arguably implies that the Trust will include additional terms necessary to effectuate the stipulated distribution. The Stipulation and Order dictates which terms must be included, but it does not dictate that no other terms are to be included. Moreover, Petitioners’ request to have only five sections of the Trust stricken indicates that Petitioners are not opposed to having additional terms included in the Trust in general; they only take issue with the inclusion of five specific provisions.

On the record presented, the court cannot make a finding that sections 4.5, 5.1, 5.9, 5.16, and 5.20 are per se invalid because they were not set forth in the Stipulation and Order.

To the extent that Petitioners otherwise seek to modify the terms of the Trust, such modification is governed by Probate Code section 15403, subdivision (b) of which provides in pertinent part, as follows: “If the continuance of the trust is necessary to carry out a material purpose of the trust, the trust cannot be modified or terminated unless the court, in its discretion, determines that the reason for doing so under the circumstances outweighs the interest in accomplishing a material purpose of the trust.”

Petitioners’ Separate Statement is silent as to the material purpose of the Trust. Respondent claims that the material purpose of the Trust was to delay transfer of ownership of the Lemon Street Property to Petitioners until the youngest of them turned 35. (ROA 164, Additional Material Facts (“AMF”) 17.) Petitioners appear to dispute such claim. (ROA 189, Reply, AMF 17.)

The only reason Petitioner gives for her proposed modification of the Trust (i.e., deleting sections 4.5, 5.1, 5.9, 5.16, and 5.20) is that the terms are not set forth in the Stipulation and Order. On the record presented, the court cannot find that such purpose outweighs the interest in accomplishing a material purpose of the Trust.

There appears to be a material dispute as to the purpose of the Trust. If the material purpose of the Trust is to preserve the Lemon Street Property until the youngest Petitioner turns 35, then sections 4.5 (the spendthrift clause), 5.9 (power over unproductive property), and 5.16 (general powers of trustee) may be necessary to accomplish such purpose. These are triable issues of material fact.

Mr. Vanderpool argues that he has raised an affirmative defense to the Petition to Modify Terms of Trust on the

		ground that it is barred by the statute of limitations set forth in Code of Civil Procedure section 337(a). In her Reply, Petitioners cite to <i>Cal-Vada Aircraft, Inc. v. Superior Court</i> (1986) 179 Cal.App.3d 435, 448 ("<i>Cal-Vada</i>") for the proposition that "[o]n summary judgment limited to conforming the instrument to the Stipulation, the court may grant summary adjudication striking provisions not contained in the Stipulation without reaching a disputed accrual date." (ROA 189, Reply, 4:11-14.) <i>Cal-Vada</i> makes no such holding; such case does not address any issues regarding conforming an instrument to a stipulation, striking provisions of a stipulation, or an accrual date. Nonetheless, Code of Civil Procedure section 337(a) applies to a cause of action for breach of a written agreement and, thus, appears to be inapplicable to the request to modify the Trust. Petitioners' reliance on <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 792, and <i>Ames v. Paley</i> (2001) 89 Cal.App.4th 668, 670, is also misplaced. Such cases dealt with whether a court's judgment properly conformed to the parties' settlement agreement. The issue before this court is whether certain provisions of a trust should be deleted because they were not specifically included in the settlement agreement which required the creation of the trust. The court cannot resolve such issue by simply determining whether the created trust "conforms" to the settlement agreement when the settlement agreement includes only a few mandatory terms for the trust. "[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (<i>Aguilar v. Atl. Richfield Co.</i>, (2001) 25 Cal.4th 826, 850.) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (<i>Id.</i>) A prima facie showing is one that is sufficient to support the position of the party in question. (<i>Id.</i> at p. 857.) Petitioners have not met his burden. Counsel for Petitioners is ordered to give notice of ruling.
01463604	Clute – Trust	TENTATIVE RULING Case: Clute – Trust 01463604

		Calendar No.: 5 Date: 06/03/2026
		[Motion Type] MOTION TO QUASH SUBPOENA (ROA 14) Respondent Randall R. Clute ("Respondent") specially appears to move to quash the subpoenas issued by Petitioner Craig C. Clute ("Petitioner") to T. Rowe Price Investment Services, Inc. and Wells Fargo, N.A. <u>Motion</u> On or about 9/17/25, Petitioner served subpoenas to T. Rowe Price Investment Services, Inc. and Wells Fargo, N.A. (ROA 19, Coleman Decl., ¶ 2, Ex. 1 and 2.) Efforts to meet and confer were unsuccessful, resulting in this motion. (Id. at ¶ 3, Ex. 3.) Respondent moves to quash the subject subpoenas on the ground that Petitioner lacks standing to petition for an accounting of a revocable trust. The California Supreme Court in <i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531 (<i>Williams</i>) held that "the way to raise lack of standing is to plead it as an affirmative defense, and thereafter to bring a motion for summary adjudication or summary judgment, not to resist discovery until a plaintiff proves he or she has standing." (<i>Id.</i> at p. 558-559.) "To show the merits of one's case has never been a threshold requirement for discovery." (<i>Id.</i> at 558.) The Discovery Act permits "any party" to conduct discovery. (Code Civ. Proc. § 2017.010.) Consistent with the Supreme Court's holding in <i>Williams</i>, the Court of Appeal for the Fourth District recently noted that objections based on lack of standing are properly raised in a dispositive motion, not in a discovery responses. (<i>Masimo Corp. v. The Vanderpool Law Firm, Inc.</i> (2024) 101 Cal.App.5th 902, fn. 7.) Respondent raised a privacy objection to the subpoenas for the first time in his Reply to this motion. "[P]oints raised in a reply brief for the first time will not be considered unless good cause is shown for the failure to present them before. [Citations.]" (<i>Balboa Ins. Co. v. Aguirre</i> (1983) 149 Cal.App.3d 1002, 1010.) The general rule of motion practice is that new evidence is not permitted with reply papers, which "is based on the same logic applied in the appellate courts, specifically, that '[p]oints raised for the first time in a reply brief will ordinarily not be considered

		because such consideration would deprive the respondent of an opportunity to counter the argument.’ [Citations.]” (<i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537.) Here, no good cause is shown for failure to raise this argument in Respondent’s moving papers, and Petitioner has not had an opportunity to reply. Nor is the argument strictly responsive to any argument made for the first time in opposition. The Court therefore declines to consider this argument. For the foregoing reasons, the motion to quash subpoenas is DENIED. Counsel for Petitioner is ordered to give notice of this ruling.
00984617	Ivicevic – Conservatorship	TENTATIVE RULING Case: Ivicevic – Conservatorship 00984617 Calendar No.: 7 Date: 06/03/2026 MOTION TO BE RELIEVED AS COUNSEL (ROA 308) Attorney Kyle A. Patrick seeks to be relieved as counsel for Craig Ivicevic. An attorney’s right to withdraw as counsel is conditioned upon compliance with California Rules of Court, Rule 3.1362. Counsel has fully complied. The court finds good cause to relieve Kyle A. Patrick as counsel for Craig Ivicevic. The motion is GRANTED. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney’s Motion to Be Relieved as Counsel.
01459618	Ramirez – Probate	TENTATIVE RULING Case: Ramirez – Probate 01459618 Calendar No.: 9 Date: 06/03/2026

		MOTION TO BE RELIEVED AS COUNSEL (ROA 41) Attorney Calvin Bryne seeks to be relieved as counsel for Administrator Jesus Ramirez. This motion was continued from 4/1/26 for compliance with Orange County Local Rule 601.21. Counsel has since complied by serving a citation by substituted service. (ROAs 61 and 63.) The court finds good cause to relieve attorney Calvin Bryne as attorney of record for Administrator Jesus Ramirez. The motion is GRANTED. Withdrawal is effective upon proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (MC-053).
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